UNITED STATES COURT OF APPEALS
FOR THE
SECOND CIRCUIT

At a stated term of the United States Court of Appeals for the Second Circuit, held at the Thurgood Marshall United States Courthouse, 40 Foley Square, in the City of New York, on the 26th day of August, two thousand twenty-six.

Mulhern Gas Co., Inc., et al.

Plaintiffs - Appellants,

v.

Walter T. Mosley, in his official capacity as New York Secretary of State and member of the State Fire Prevention and Building Code Council, formerly known as Robert J. Rodriguez,

Defendant - Appellee,

New York Geothermal Energy Organization, PUSH Buffalo,

Intervenor-Defendants-Appellees.

ORDER

Docket No: 25-2041

Appellants filed a petition for rehearing *en banc*. The active members of the Court have considered the request for rehearing *en banc*.

IT IS HEREBY ORDERED that the petition is denied.

FOR THE COURT:

Catherine O'Hagan Wolfe, Clerk

